

April 24, 2007



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13219
(FOURTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain DOT specification tank cars, containing Division 5.1 or 5.2 materials, that have been inspected under a modified inspection program prior to being offered for transportation. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.302(c) in that marking the special permit number on the tank cars is waived; and 173.31(d)(1)(vi) in that removal of the rupture disc for inspection is waived.
5. BASIS: This special permit is based on the application of Solvay Chemicals, Inc., dated June 24, 2005 submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hydrogen peroxide, stabilized or hydrogen peroxide aqueous solutions, stabilized with more than 60 percent hydrogen peroxide	5.1	UN2015	I
Hydrogen peroxide, aqueous solutions, with more than 40 percent but not more than 60 percent hydrogen peroxide (stabilized as necessary)	5.1	UN2014	II
Hydrogen peroxide, aqueous solutions, with not less than 20 percent but not more than 40 percent hydrogen peroxide (stabilized as necessary)	5.1	UN2014	II
Organic peroxide type F, liquid (peroxyacetic acid)	5.2	UN3109	II
Hydrogen peroxide and peroxyacetic acid mixtures, stabilized with acids, water and not more than 6 percent peroxyacetic acid	5.1	UN3149	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are DOT specification tank cars authorized by the Hazardous Materials Regulations for use in the shipment of the hazardous materials identified in paragraph 6 above. Tank cars must be equipped with rupture discs made of multiple layers of aluminum, Teflon and stainless steel.

b. TESTING - Each tank car operating under the terms of this special permit must be retested in accordance with § 180.509 no later than the due date of their next hydrostatic tank test.

c. OPERATIONAL CONTROLS -

(1) Prior to offering, the shipper must conduct the visual inspection of each car in accordance with § 173.31(d)(1)(vi) except that the frangible disc is not required to be removed for inspection. All other applicable requirements of § 173.31 must be complied with.

(2) Prior to each shipment, each tank car will be subjected to a pressure test of 10 psi for a minimum of 10 minutes to verify the rupture disc shows no sign of leakage. This leakage test requirement does not apply to shipment of tank cars containing residue at no more than 3 percent of the total volume.

(3) Tank cars must be used exclusively for the hazardous materials specified in paragraph 6 of this special permit.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. The marking requirements of § 172.302(c) are waived

d. Shipping papers displaying 'DOT-E 13219' may continue to be used until October 1 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.
10. MODAL REQUIREMENTS: None as a provision of this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Bob Richard
Deputy Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm
Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.
PO: sln